

25VECV03937 25VECV03937

County: los-angeles

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Case Number: 25VECV03937 Hearing Date: September 16, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SEVAK

KHACHATRIAN and DAVIT PERIKHANYAN,

Plaintiff,

vs.

EDDER

ISRAEL ROJAS PARRA, and DOES j 1-10, Inclusive,

Defendant.

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CASE NO.: 25VECV03937

(C/W: 25VECV05960)

ORDER

DENYING DEFENDANT'S MOTION FOR LEAVE TO SUBMIT TARDY EXPERT WITNESS
DESIGNATION

CATERINE

BARRERA VALERO,

Plaintiff,

vs.

EDDER

ISRAEL ROJAS PARRA, and DOES 1-100, Inclusive,

Defendant.

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1.

BACKGROUND

This is a motor vehicle

action involving Plaintiffs Catherine Barrera Valero (consolidated action Case No. 25VECV05960), Sevak Khachatryan, and Davit Perikhanyan (jointly in lead action Case No. 25VECV03937) and Defendant Edder Israel Rojas Parra (“Defendant”).

Defendant moves for

leave to submit tardy expert witness disclosure and to allow the depositions of experts through November 9, 2026.

II.

PROCEDURAL

HISTORY

On July 15,

2025, Plaintiffs Sevak Khachatrian and Davit Perikhanyan (jointly “Plaintiffs”) filed a Complaint alleging (1) Negligence; (2) Negligence Per Se; and (3) Negligent Entrustment.

On August 18, 2025,

Defendant filed an Answer.

On October 16, 2025,
Plaintiff Caterine Barrera Valero ("Valero") filed a Complaint alleging (1)
Motor Vehicle tort and (2) Negligence.

On December 12, 2025,
Defendant filed an Answer.

On August 7,
2026, the Court granted in part Defendant's ex parte Application for an Order to
Continue Trial and All Related Dates. The Court continued the trial date. Fact
and expert discovery deadlines were not extended; they remained based on the
prior trial date.

On August 13,
2026, Defendant filed the instant Motion.

On August 31,
2026, Plaintiffs filed an Opposition.

On September
9, 2026, Defendant filed a Reply.

III.

LEGAL STANDARD

A party
who fails to submit expert witness information on the date
specified in a demand for that exchange may seek leave to submit that
information on a later date.¿(See Code
Civ. Proc. §
2034.710(a).) [1] Absent "exceptional circumstances," the motion
for permission to file a tardy list must be made early enough to permit deposing the
experts involved before the 15–day cut-off
on expert witness depositions. (See id., §§ 2034.710(b), 2024.030.)¿

The court
may permit tardy submission of expert witness lists and information
if the following conditions are satisfied:¿

a)

The court has taken into account the extent to which the opposing party has relied on the absence of a list of expert witnesses.¿¿

b)

The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.¿¿

c)

The court has determined that the moving party did all of the following:¿

1.

Failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect.¿

2.

Sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect.¿¿

3.

Promptly thereafter served a copy of the proposed expert witness information described in Section 2034.260 on all other parties who have appeared in the action.¿¿

d)

The order is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.¿¿

(See id., § 2034.720.)¿

IV.

MEET AND CONFER

Code of Civil

Procedure § 2034.710(b)(2) requires the motion be accompanied by a meet and confer declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference. (See id., § 2034.710(c).)

Defendant's

counsel attests he emailed Valero's counsel a meet and confer letter, but he did not receive a response. (See Declaration of Edward Alberola filed August 13, 2026 ("Alberola Decl."), ¶ 9.) Defendant's counsel attests, although he did not receive a response, during numerous communications with Plaintiff's counsel, he opposed Defendant designating any experts in this matter, including objecting to Defendant's August 11, 2026, designation and calling for them to be excluded. (See id.)

The Court

finds Defendant's counsel complied with his meet and confer obligation.

V.

ANALYSIS

Defendant moves

for an order allowing

him to submit tardy expert witness designations and allowing expert depositions through November 9, 2026. Defendant argues he has admitted liability and thus the only disputed issue is Plaintiff's injuries, which will turn on expert testimony. (See Mot. at 4:5-11.) Defendant explains Valero designated experts and Plaintiffs have not. (See id. at 3:11-12.) Defendant argues Valero has not relied on the absence of a list of expert witnesses and will not be prejudiced because Defendant will agree to allow Plaintiff supplementing her list 20 days after Defendant's proposed designation is allowed and will make his experts available for deposition up until 30 days before the December 9, 2026, trial date, so long as Valero makes his experts available for deposition. (See id., at 4:12-16.) Defendant's counsel attests he failed to submit his expert list due to excusable neglect and inadvertence. Defendant's counsel attests when Valero served her demand for exchange of expert witness designation on July 1, 2026, the handling attorneys had already left the firm or been taken off the case. (See Alberola Decl., ¶ 3.) The case was not reassigned until mid-July and Valero's email was never

forwarded to a calendar clerk or legal secretary for processing. (See id., ¶¶ 3, 5.) Defendant's counsel attests on August 7, 2026, Valero forwarded the demand she had served on July 1st. (See id., ¶ 6.) Defendant's counsel attests he served Defendant's [Proposed] Designation of Expert Witnesses for Trial on all parties. (See id., ¶ 10, Ex. A.)

In opposition, Valero argues she relied on the absence of Defendant's list of expert witnesses and would be prejudiced because Defendant would have the benefit of designating retained experts only after Plaintiff disclosed her experts and Plaintiff would have to reopen discovery, incur additional expert expense, and prepare for new retained defense opinions after the expert discovery deadlines. (See Opp. at 4:5-19.) Valero argues Defendant has not shown excusable neglect, but rather internal firm breakdown. (See id., at 4:24-25.) Valero argues Defendant did not timely seek leave as first he sought ex parte relief then served an expert list on August 11, 2026, attempting to designate retained experts for the first time. (See id., at 5:1-11.)

In reply, Defendant argues since the filing of this Motion, Valero has stipulated to make her experts available for deposition after this hearing and after the expert witness discovery cutoff so as to avoid any prejudice that might arise if her experts were deposed before the hearing on this motion and before Defendant's experts could be deemed designated and deposed. (See Reply at 2:5-9; Alberola Decl., ¶ 2, Ex. A.) Defendant reasserts he has satisfied the statutory requirements and argues a genuine office calendaring error qualifies as excusable neglect; it was not a tactical decision. (See Reply at 2:18-23, citing *Barboni v. Tuomi* (2012) 210 Cal.App.4th 340; Reply Alberola Decl., ¶¶ 3.)

The Court will grant the Motion. As an initial matter, the discovery deadlines remain based on the initial September 9, 2026, trial date. (See August 7, 2026, Minute Order.) The Court notes the 15-day cut-off on expert witness depositions was August 25, 2026, and this Motion was filed on August 13, 2026. The Court finds exceptional circumstances exist here for bringing this Motion without sufficient time to permit expert depositions before the 15-day cut-off as Defendant's counsel shows he did not become aware of a demand for expert designation until August 7, 2026, due to internal mishandling of this case. (See Code Civ. Proc., §§ 2034.710(b),

2024.030.)

The Court has

considered the extent to which the opposing party has relied on the absence of a list of expert witnesses. To that end, Valero hasn't shown she has taken actions in reliance on a lack of Defendant's expert designation. Her argument instead focuses on suffering prejudice. However, the Court finds Valero will not be prejudiced in maintaining her action as the parties agreed to conduct expert depositions after the hearing of this Motion and Defendant will agree to Plaintiff amending her expert list after Defendant designates his experts. Both parties will incur costs in conducting expert discovery, as this is a basic feature of litigation and not actual prejudice. Thus, the Court finds Valero will not be prejudiced in maintaining her action against Defendant on the merits.

The Court finds

Defendant has shown he failed to submit his expert list due to excusable neglect and inadvertence as Valero's expert demand was not received by an attorney active on the case or forwarded to the newly assigned attorney. Defendant promptly sought leave by filing this Motion six days after receiving Valero's forwarded email containing her demand for exchange of expert witness information. Finally, Defendant's counsel attested he served the proposed expert witness information on all parties. Nevertheless, the Court must deny the Motion because the supporting declaration fails to attach Exhibit A showing proof of service of the proposed expert witness information described in Section 2034.260 on all other parties who have appeared in the action as required by section 2034.720(c)(3). (See Code Civ. Proc. § 2034.720(c)(3).) The Court reached out to counsel prior to the issuance of this tentative ruling to address this clerical error but received no response to its request. Thus, the Court will inquire at the hearing for provision of this document.

Based on the

foregoing, the Court DENIES Defendant's Motion for Leave to Submit Tardy Expert Witness Designation.

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VI.

CONCLUSION

Based on the foregoing, the Court DENIES Defendant's Motion for Leave to Submit Tardy Expert Witness Designation.

IT

IS SO ORDERED.

DATED: September 16, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.